EMPLOYER'S PRACTICAL REFERENCE

Potential Defenses & Claim Investigation Prompts

A brain-tickler guide for employers and claims teams

THE PURPOSE
This guide prompts better questions; it does not tell an employer to deny a claim. Use it to identify issues worth investigating, gather relevant facts, and ask the claims administrator or qualified workers' compensation counsel whether a legal issue applies in the state involved.

Is this happening? Did we ask? What evidence do we have? Has this been explored?

How to Use This Guide

Use these prompts when reporting an injury, reviewing a new claim, evaluating a change, or preparing for a claim review. Not every question applies to every claim.

- Start with facts: distinguish what is known, alleged, disputed, and unknown.
- Ask open, neutral questions. Avoid leading questions, assumptions, retaliation, or pressuring an employee.
- Preserve relevant evidence lawfully and promptly; follow privacy rules, policy, and applicable law.
- Route legal questions to the adjuster, TPA, carrier, or qualified counsel. A checklist does not establish a defense.
- Document the issue, evidence source, follow-up owner, and due date.

IMPORTANT
A red flag is a reason to investigate - not proof of fraud, misconduct, or non-compensability. Standards, exceptions, deadlines, burdens of proof, and defenses differ by state and claim type.

Quick Triage: Questions for Every New Claim

- ☐ What exactly is alleged to have happened, and when, where, and during which activity?
- ☐ Who received the first report, when did they receive it, and what exactly was said?
- ☐ Was the employee performing assigned work or another activity connected to the employer's business?
- ☐ Who witnessed the event or has relevant first-hand information?
- ☐ Are photos, video, equipment logs, dispatch records, messages, time records, or other evidence available to preserve?
- ☐ What body part or condition is claimed, and does available medical information connect it to the event or exposure?
- ☐ What deadlines apply to employee notice, employer reporting, claim filing, benefit decisions, or disputing compensability?
- ☐ What remains unanswered, who owns the follow-up, and by when?

1. Course and Scope of Employment

- ☐ What was the employee assigned to do at that moment?
- ☐ Was the employee on the clock, on a break, commuting, traveling, making a delivery, or attending a work-related event?
- ☐ Was the employee at the usual worksite or another location? Who directed them there?
- ☐ Was the activity intended to further the employer's business, or was it personal? What evidence supports either explanation?
- ☐ Was there a deviation from assigned duties? What was its nature, duration, and purpose?
- ☐ Is there evidence a known safety policy or protocol was violated?
- ☐ Do special rules apply to travel, remote work, parking areas, breaks, recreational activities, or employer-sponsored events?

2. Timely Notice, Reporting, and Filing

- ☐ When did the employee first report the injury or symptoms, to whom, and by what method?
- ☐ Did the employee tell a supervisor, HR, a coworker, a medical provider, or someone else earlier?
- ☐ When did the employer first know or reasonably suspect the condition might be work-related?
- ☐ Has the claims administrator confirmed employee notice, employer reporting, claim filing, and dispute deadlines?
- ☐ Does state law recognize exceptions, actual-knowledge rules, prejudice requirements, or special rules for occupational disease or repetitive trauma?
- ☐ Has a missed deadline been evaluated by the claims administrator or counsel rather than assumed to bar the claim?

3. Causation, Diagnosis, and Pre-Existing Conditions

- ☐ Is the reported mechanism consistent with the diagnosis and symptoms described?
- ☐ Did symptoms begin immediately, develop later, or exist before the reported event?
- ☐ If there’s evidence of a pre-existing condition, was it disclosed prior to hire during the pre-employment physical?
- ☐ Has the employee described prior symptoms, similar injuries, treatment, or limitations relevant to the condition?
- ☐ Are prior records or other records relevant and lawfully obtainable?
- ☐ Could the condition involve aggravation, natural progression, a new injury, or multiple contributing causes?
- ☐ Has an appropriate medical provider addressed causation and restrictions where needed?
- ☐ Are there conflicting diagnoses, unexplained changes, or medical opinions the adjuster should reconcile?

4. Witnesses, Statements, and Physical Evidence

- ☐ Who saw the event itself, and who only heard about it afterward?
- ☐ Have witnesses been interviewed separately using neutral questions and documenting their own words?

- ☐ Do accounts differ about location, mechanism, timing, symptoms, or response? What could explain the difference?
- ☐ Is relevant video available? What are retention and overwrite schedules, and has lawful preservation been requested?
- ☐ Are equipment inspections, maintenance logs, telematics, dispatch records, badge access, schedules, photos, or incident reports relevant?
- ☐ Has physical evidence been preserved without alteration where appropriate?

5. Potential Statutory Exceptions or Defenses to Explore

These are investigative prompts only. Legal availability, elements, causation standards, proof requirements, and deadlines vary substantially by jurisdiction.

- ☐ Intoxication/substance use: Is there objective, lawfully obtained evidence? What testing procedures apply? Does state law require a causal connection or specify a presumption?
- ☐ Intentional injury: Is there reliable evidence of intentional self-injury rather than an accident, and what exact statutory standard applies?
- ☐ Horseplay/fighting/personal activity: What was happening immediately before the event? Was the employee participating, withdrawing, acting in self-defense, or doing work?
- ☐ Personal deviation/off-duty activity: Was the activity work-connected? What rules apply to breaks, travel, recreation, or employer-sponsored events?
- ☐ Intervening event/alternative cause: Did another event affect the condition or disability? What is established by evidence versus speculation?
- ☐ Employee classification: What was the actual working relationship? Do state-specific employee definitions, presumptions, or industry rules apply?
- ☐ Occupational disease/repetitive trauma: What exposure, task, duration, and work history are alleged? What state-specific causation and filing rules apply?
- ☐ Misrepresentation/fraud concerns: What specific statement conflicts with objective evidence? Could there be a reasonable explanation? Has qualified claims personnel or counsel reviewed it?

6. Medical Treatment, Restrictions, and Return to Work

- ☐ Are current restrictions clear, current, and supported by medical documentation?
- ☐ Has the employer provided accurate job demands and essential functions to the provider when appropriate?
- ☐ Is suitable modified duty genuinely available and consistent with documented restrictions?
- ☐ Have missed appointments, treatment gaps, or treatment changes been confirmed and discussed with the claims administrator rather than assumed to show non-cooperation?
- ☐ Are medical disputes or requests for additional treatment being handled under state procedures?
- ☐ Has the employee been treated respectfully and provided required notices and accommodations?

7. Benefit Calculation and Claim Administration

- ☐ Were wages, hours, concurrent employment where relevant, and the applicable average weekly wage period calculated correctly?

- ☐ Were overtime, bonuses, seasonal earnings, or other wage components considered under state rules?
- ☐ Are disability dates, work status, and benefit periods consistent with medical and payroll records?
- ☐ Have benefit notices, acceptance/denial notices, and required filings been handled within applicable deadlines?
- ☐ Are overpayments, duplicate wage payments, third-party recovery, or coordination questions worth reviewing?
- ☐ Have disputes and defenses been raised through the required process and within the required time?

8. Questions to Ask the Adjuster or TPA

- ☐ What are the current disputed issues, and what facts support each position?
- ☐ What evidence is still needed for an informed compensability or benefit decision?
- ☐ Have potential statutory exceptions or defenses been screened under the law of the correct jurisdiction?
- ☐ What are the relevant deadlines, and who owns each next action?
- ☐ Is a statement, witness interview, medical review, field investigation, or SIU referral appropriate and lawful?
- ☐ What are the risks of accepting, disputing, or continuing to investigate, and what does counsel recommend?
- ☐ What would change the current assessment of the claim?
- ☐ When will the claim be reviewed again, and what measurable next steps are expected?

9. Document the Follow-Up

Issue / Question	Known Facts / Evidence	Owner	Due Date	Status / Outcome

10. State-Specific Legal Research

Use the EWCC State Workers' Compensation Legal Reference to access the ALFA International Workers' Compensation Compendium for the relevant state. Treat it as a starting point, then confirm current statutes, regulations, controlling decisions, procedural rules, and deadlines with official sources and qualified counsel.

ALFA International Workers' Compensation Compendium:
https://www.alfainternational.com/compendium/workers-compensation/

State agency resources illustrate why jurisdiction-specific confirmation matters. Texas and New York describe different claim dispute and employer rights procedures; those rules should not be assumed to apply elsewhere.

Texas Department of Insurance — Compensability disputes:
https://www.tdi.texas.gov/wc/idr/compensability.html

New York Workers' Compensation Board — Employer rights and responsibilities:
https://apps.wcb.ny.gov/content/main/Workers/YourEmployersRightResponsibilities.jsp

FINAL REMINDER

The objective is a complete, fair, evidence-based claim review—not denial for denial's sake. Do not delay required reporting, medical care, or benefits while exploring a question. Follow applicable law, policy, and counsel's direction.